

The Democratic Voice Amendment

Equal accountability across the UK's four legislatures

Click or tap an underlined phrase to read its explanation. Each note links back here.

Version 2: includes regional mayors. Based on HL Bill 42, checked 25 September 2026.

Explanatory Statement

Includes all members of the UK's four legislatures within the duty of candour and the offence of misleading the public. Safeguards freedom of political expression and debate, parliamentary privilege, and honest mistakes, whilst recognising the democratic voice of legislators, Government Ministers and mayors as part of their public functions.

49 words

Schedule 2, page 53, line 17, at end insert -

Equal accountability across UK legislatures

(14) Subject to sub-paragraph (2), “public official” also includes a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

Safeguarding freedom of political expression and debate

(15) Neither section 5 nor section 12 applies to anything said or done in proceedings of any Parliament or legislative assembly in the United Kingdom. Outside those proceedings, a person does not commit either offence merely by making an honest mistake or expressing an honestly held political belief or opinion. Nothing in this paragraph limits the right to freedom of expression under Article 10 of Schedule 1 to the Human Rights Act 1998.

Democratic voice as a public function

(16) For the purposes of sub-paragraph (2) and section 12, a person within sub-paragraph (14), the Mayor of London, a mayor for the area of a combined authority or combined county authority, a Minister of the Crown, a member of the Scottish Government, a junior Scottish Minister, a member of the Welsh Government or a Minister or junior Minister within the meaning of the Northern Ireland Act 1998 is treated as acting in their capacity as a public authority or public official, as applicable, and exercising their public functions when communicating with the public, by any means, about matters of significant concern to the public. Such matters include public policy, national security, public expenditure, the allocation of public assets or resources, legislative or democratic processes, and the environment. Section 12(4) does not apply to that person in respect of such a communication. This sub-paragraph does not apply to communications made in a judicial capacity or concerning solely a person's private life, family life or private business.

Notes 01-04

Explanations are reading aids, not additional amendment text.

01 Explanatory statement

This short summary explains the amendment's purpose. It does not itself change the law. The numbered provisions below it are the proposed legal text. They would take effect through the Bill if Parliament agreed the amendment, the Bill became law and the relevant provisions came into force.

OPC guidance on explanatory statements

[Drafting guidance](#)

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02 Where this amendment goes

A Schedule is a part of an Act, often containing definitions or detail. Schedule 2 defines who counts as a public authority or public official. This amendment adds three sub-paragraphs to paragraph 3, in Part 2. The page and line identify the insertion point in the Lords print, HL Bill 42.

Schedule 2, paragraph 3; printed page 53, line 17

[See the Bill](#)

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03 The numbers (14), (15) and (16)

These are three new sub-paragraphs within Schedule 2, paragraph 3, following the existing (13). They are not new clauses or the amendment number Parliament may allocate. A Bill's clauses become sections when it becomes law, which is why the proposed legal text refers to "section 5" and "section 12".

Schedule 2, paragraph 3; amendment drafting convention

[See the Bill](#) | [Drafting guidance](#)

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04 The UK's four legislatures

These are the UK Parliament in London, the Scottish Parliament in Edinburgh, Senedd Cymru in Cardiff, and the Northern Ireland Assembly in Belfast. A legislature debates and makes laws. The UK Parliament has two Houses: the House of Commons and the House of Lords. Together they are one legislature.

The institutions named in proposed (14)

[UK Parliament](#)

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Notes 05-08

Explanations are reading aids, not additional amendment text.

05 All members; either House; legislators

“Legislators” means members of these law-making institutions. Paragraph (14) covers MPs, members of the House of Lords, MSPs, Members of the Senedd and MLAs. It includes peers who are not elected. It adds the members to the relevant definition; the legislatures themselves remain excluded as public authorities.

Proposed (14); Schedule 2, paragraphs 2(4) and 3

[See the Bill](#)

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06 Duty of candour

Candour means being open, honest and frank. Clause 2 sets the duty of candour and assistance in dealings with the inquiries and investigations covered by the Bill. It includes notifying relevant information, providing assistance and correcting errors, subject to the Bill’s rules. Clause 5 creates the offence for certain failures to comply.

Clauses 2, 3, 5 and 9; Schedule 1

[Read the duty and offence](#)

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07 Section 5: the duty-of-candour offence

This is the offence of failing to comply with the duty of candour and assistance. It requires a failure connected with a covered inquiry or investigation and an intention to impede it; for specified duties, recklessness can also qualify. A simple accidental failure is not enough by itself.

Clause 5(1); the underlying duty is in clause 2

[Read clause 5](#)

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08 Section 12: misleading the public

An incorrect statement alone is not enough. Section 12 requires intention or recklessness about misleading the public, significant or repeated dishonesty on a matter of significant public concern, actual or potential harm from the act, and a significant departure from proper functions. The person must know, or ought to know, that the act is seriously improper; a reasonable person must also consider it so in all the circumstances. The Bill’s defences remain.

Clause 12(1)-(3), (6)-(8)

[Read clause 12](#)

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Notes 09-12

Explanations are reading aids, not additional amendment text.

09 Freedom of political expression and debate

This preserves room for political argument, criticism and disagreement. An unpopular policy or strongly expressed view does not become a crime simply because others object. Paragraph (15) expressly protects honest mistakes and honestly held political opinions, alongside the existing freedom-of-expression right. The requirements of the relevant offence still have to be established.

Proposed (15); Human Rights Act, Schedule 1, Article 10

[Article 10](#)

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10 Parliamentary privilege and proceedings

At Westminster, Article IX of the Bill of Rights protects parliamentary speech, debates and proceedings from being questioned in court. This amendment expressly excludes sections 5 and 12 for proceedings in all four legislatures. That includes formal parliamentary work, such as debates and committee evidence; it does not cover everything said anywhere in a Parliament building.

Proposed (15); Bill of Rights, Article IX

[Westminster privilege](#) | [Devolved example: NI](#)

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11 Honest mistakes

A person does not commit either offence merely by making a genuine mistake. Being wrong is different from being dishonest. This protection does not excuse separate conduct that satisfies the offence, such as deliberately concealing a known correction. The word “merely” keeps that distinction clear.

Proposed (15); clauses 5 and 12

[See the offences](#)

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12 Outside parliamentary proceedings

A television interview, public meeting or social-media post is not automatically a parliamentary proceeding because a politician is speaking. Repeating a parliamentary statement outside proceedings is not automatically protected either. Paragraph (15)’s honest-mistake, honest-opinion and freedom-of-expression safeguards remain relevant outside proceedings.

Proposed (15); the distinction between proceedings and other activity

[What counts as proceedings](#)

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Notes 13-16

Explanations are reading aids, not additional amendment text.

13 “Merely” and “either offence”

“Either offence” means section 5 or section 12.
“Merely” means the honest mistake or honestly held opinion alone cannot establish the offence. It does not give a person immunity for additional dishonest conduct. This safeguard is written for any person facing these offences, not only legislators.

Proposed (15), second sentence

[Read the two offences](#)

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14 Honestly held political belief or opinion

This means a political view the person actually holds. People may disagree about whether a policy is fair, wise or likely to succeed. Disagreement alone is not proof of dishonesty. Calling something “my opinion” does not automatically protect separately invented facts or other dishonest conduct.

Proposed (15); Article 10

[Freedom of expression](#)

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15 “Nothing in this paragraph”

“This paragraph” means the whole of Schedule 2, paragraph 3, including the new sub-paragraphs (14), (15) and (16). The sentence preserves the freedom-of-expression right when that paragraph is applied. It does not turn that right into an unlimited exemption from the law.

Proposed (15), final sentence

[Article 10](#)

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16 Article 10 and the Human Rights Act 1998

Article 10 protects freedom of expression, including holding opinions and receiving or sharing information and ideas. It is set out in Schedule 1 to the Human Rights Act, which gives the right legal effect in the UK. Restrictions must satisfy Article 10’s requirements, including lawful justification, necessity and proportionality.

Human Rights Act 1998, Schedule 1, Article 10(1)-(2)

[Read Article 10](#)

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Notes 17-20

Explanations are reading aids, not additional amendment text.

17 Democratic voice as a public function

This names the central idea: addressing the public about matters of significant public concern forms part of the official role of the listed legislators, ministers and mayors. “Democratic” describes their role in democratic institutions; it does not mean every office-holder is elected. Paragraph (16) gives this idea its specific legal effect for this Bill.

Proposed (16); campaign heading and explanatory statement

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18 Public functions

These are the duties and activities belonging to someone’s public role. The Bill limits public-official status to those functions. Paragraph (16) expressly makes the listed people’s public communications on matters of significant public concern count as exercising public functions, subject to its judicial and purely private exclusions.

Schedule 2, paragraph 3(2); clause 12(3)(c); proposed (16)

[See the Bill’s tests](#)

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19 Subject to sub-paragraph (2)

This refers to existing Schedule 2, paragraph 3(2), not clause 2. It says someone counts as a public official only to the extent of their functions as that official. Paragraph (14) retains that limit. Paragraph (16) then specifies when the listed people’s public communications count as official activity.

Existing Schedule 2, paragraph 3(2)

[Read paragraph 3](#)

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20 Public official

This is the Bill’s legal category for an individual with a relevant public role. Schedule 2, paragraph 3 defines it. Paragraph (14) expressly adds all members of the four legislatures, subject to the functions limit. It does not make every aspect of their personal lives an official activity.

Schedule 2, paragraph 3; proposed (14)

[Read the definition](#)

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Notes 21-24

Explanations are reading aids, not additional amendment text.

21 Government Ministers

These include UK ministers and ministers in the Scottish, Welsh and Northern Ireland governments. Ministers are already covered through the Bill's existing definitions. Paragraph (16) names their legal categories so its public-communications rule applies to them too, including relevant junior ministers and law officers.

Schedule 2, paragraphs 2 and 3; proposed (16)

[Existing Bill definitions](#)

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22 Minister of the Crown

This is the statutory term for ministers in the UK Government, including the Prime Minister, Cabinet ministers and junior ministers. Coverage follows the legal office rather than its current portfolio title. The Bill imports the definition from the Ministers of the Crown Act 1975.

Clause 25(1); Ministers of the Crown Act 1975, section 8

[Read the statutory definition](#)

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23 Which mayors are included?

Here “mayors” means the Mayor of London and mayors for the areas of combined authorities or combined county authorities. These offices are already covered by the Bill. Paragraph (16) expressly applies the public-communications rule to them. It does not add every local council mayor, councillor or police and crime commissioner to that rule.

Proposed (16); Schedule 2, paragraph 3(10)-(11)

[Existing Bill coverage](#)

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24 The Mayor of London

This is the elected mayor responsible for London-wide government through the Greater London Authority. It is a different office from the Lord Mayor of the City of London. Paragraph (16) names the Mayor of London personally; this addition does not extend its communications rule to the Deputy Mayor or London Assembly members.

Proposed (16); Schedule 2, paragraph 3(11)

[London government](#) | [Bill coverage](#)

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Notes 25-28

Explanations are reading aids, not additional amendment text.

25 Combined-authority and combined-county-authority mayors

These are elected regional mayors, such as the Mayor of Greater Manchester. A combined authority brings councils together to exercise shared powers across a wider area. A combined county authority is a separate statutory form for regional government. Naming both categories covers their mayoral offices without listing each region. It does not include every mayor of an individual council.

Proposed (16); 2009 Act, section 107A; 2023 Act, section 27

[Combined-authority mayors](#) | [Combined-county-authority mayors](#)

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26 Member of the Scottish Government

The statutory membership includes the First Minister, Scottish Ministers appointed under section 47 of the Scotland Act, the Lord Advocate and the Solicitor General for Scotland. The two law officers are therefore included even if they are not MSPs. Junior Scottish Ministers have a separate legal category.

Scotland Act 1998, sections 44, 47 and 48

[Read section 44](#)

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27 Junior Scottish Minister

Junior Scottish Ministers are appointed under section 49 of the Scotland Act to assist the Scottish Ministers. Their statutory category is separate from membership of the Scottish Government under section 44. Naming them expressly makes sure the public-communications rule includes them.

Scotland Act 1998, section 49

[Read section 49](#)

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28 Member of the Welsh Government

The statutory membership includes the First Minister, Welsh Ministers, the Counsel General and Deputy Welsh Ministers. This wording therefore includes deputies without listing them again. It also includes a formally appointed Counsel General who is not a Member of the Senedd.

Government of Wales Act 2006, section 45

[Read section 45](#)

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Notes 29-32

Explanations are reading aids, not additional amendment text.

29 Northern Ireland Ministers and junior Ministers

These legal categories include the First Minister, deputy First Minister, departmental ministers and junior Ministers. They are not a frozen list of portfolio names from 1998. New or renamed portfolios created under the statutory framework remain covered. The Justice Minister is also a Northern Ireland Minister.

NI Act 1998, sections 7(3), 17-19, 21 and 21A; Department of Justice Act (NI) 2010, section 2

[Minister definition](#) | [Justice Minister](#)

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30 For the purposes of sub-paragraph (2) and section 12

These words specify where the new rule operates: the existing limit on public-official functions, and the misleading-the-public offence. Paragraph (16) settles the capacity and functions questions for qualifying communications. It does not declare that every such communication is criminal or define everyone's role for every other law.

Schedule 2, paragraph 3(2); clause 12; proposed (16)

[Read the Bill](#)

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31 Acting in their capacity; "as applicable"

This means acting in the official role relevant to the Bill. Some offices qualify as public authorities; individuals may qualify as public officials. "As applicable" uses whichever category fits. Paragraph (16) treats the specified public communications as official activity without requiring a separate link to the speaker's particular portfolio.

Clause 12(1); Schedule 2, paragraphs 2 and 3; proposed (16)

[Capacity and definitions](#)

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32 Public authority or public official

The Bill distinguishes public authorities, such as government departments, from individual public officials. Ministers can be covered through the relevant routes. This wording follows those existing categories. It does not turn an ordinary legislator, or the whole legislature, into a government department.

Schedule 2, Part 2; clause 12(1)

[Read the definitions](#)

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Notes 33-36

Explanations are reading aids, not additional amendment text.

33 Communicating with the public, by any means

This includes television, radio, public meetings, interviews, articles and online posts. For section 12, “the public” means the public in the UK and includes a section of it. The wording covers new communication platforms too. A private conversation does not become public merely because a politician takes part.

Proposed (16); clause 12(8), meaning of “the public”

[Read clause 12](#)

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34 Matters of significant concern to the public

These are matters sufficiently important to the public, rather than every trivial or purely personal subject. The following sentence gives examples. The rule does not require the subject to fall within that politician’s individual portfolio. The Bill’s other requirements still determine whether any offence has been committed.

Proposed (16); clause 12(3)(a)

[Read the offence](#)

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35 “Such matters include”

“Include” introduces examples, not a closed list. Public health or public safety, for example, may qualify even though not separately named. Any other subject must still meet the requirement of significant public concern. The judicial and solely private exclusions continue to apply.

Proposed (16), second and final sentences

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36 Public policy

Plans, decisions and proposals about what government or public bodies should do. This can include policies being proposed, opposed or debated, as well as policies already in force. The amendment’s honest-opinion protection leaves room to argue about which policies are best.

An example in proposed (16)

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Notes 37-40

Explanations are reading aids, not additional amendment text.

37 National security

Matters affecting the country's security, such as defence or threats to the state. Listing the subject does not require disclosure of protected secrets. The Bill's existing defences remain, including the specified intelligence or active-service defence and the reasonable-excuse defence.

Proposed (16); clause 12(6)-(7)

[Read the existing defences](#)

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38 Public expenditure

Spending public money: for example, budgets, the cost of a policy or what a public programme will receive. A disagreement about spending priorities can be an honest political opinion. A dishonest factual claim about a figure is a different matter; the offence's full requirements still apply.

An example in proposed (16)

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39 Allocation of public assets or resources

Decisions about who receives or uses things held for public purposes. Examples include public land, buildings, equipment, funding and staff time. "Allocation" means how those assets or resources are assigned or distributed. This reaches more than money alone.

An example in proposed (16)

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40 Legislative or democratic processes

The making and changing of laws, and processes through which democratic decisions are made, such as elections and referendums. This describes the subject being discussed. It does not add referendum campaign staff to the people covered, and it does not remove paragraph (15)'s protection for parliamentary proceedings.

Proposed (14)-(16)

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Notes 41-44

Explanations are reading aids, not additional amendment text.

41 The environment

Matters such as pollution, climate, nature, air, water and land. Naming the environment makes clear that important environmental issues are within the examples of public concern. As elsewhere, honest disagreement and genuine mistakes remain protected, and the offence's other conditions must be satisfied.

An example in proposed (16)

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42 Section 12(4): the journalism exception

Clause 12(4) otherwise excludes acts done for journalism by a recognised news publisher or someone working for one. Paragraph (16) removes that exception for the listed person's qualifying public communication. A politician therefore cannot rely on that exception for such a communication simply because it forms part of a journalistic role.

Clause 12(4); Online Safety Act 2023, section 56

[The exception](#) | [Recognised news publisher](#)

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43 "That person" and "such a communication"

These words tie the removal of the journalism exception to the particular listed legislator, minister or mayor and a communication meeting paragraph (16)'s conditions. They do not remove the exception generally for the publisher or other journalists. The politician's remaining offence safeguards and defences still apply.

Proposed (16), third sentence

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44 "This sub-paragraph"

This means (16) alone. The final sentence switches off its special public-communications rule for communications made in a judicial capacity and communications concerning solely private affairs. It does not create a blanket exemption from section 12 or from other laws.

Proposed (16), final sentence

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Notes 45-46

Explanations are reading aids, not additional amendment text.

45 Made in a judicial capacity

This means acting as a judge, for example when delivering a judgment. A serving judge can remain a member of the House of Lords while barred from sitting and voting there. These words prevent the new communications rule from applying to judicial work simply because the judge is also a peer.

Proposed (16); Constitutional Reform Act 2005, section 137

[Judges and House membership](#)

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46 Solely private, family or business life

This keeps purely private matters outside the new communications rule. “Solely” means entirely: public money, public resources or official decisions can make something more than a private affair, even where a family business is involved. The sentence limits this rule; it does not create a general exemption from the Bill.

Proposed (16), final sentence

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